

Romilly, Master of the Rolls (*h*). But the decision in the last case in which the Master of the Rolls so held was reversed on appeal by the Lord Chancellor and Lord Justices, and though the reversal rested upon the ground that as the will was worded, an accumulation was *expressly* directed (*i*), the Lord Chancellor felt himself called upon to say that the distinction taken by the Master of the Rolls between an accumulation *expressed* and an accumulation *implied* was untenable; and he justly remarked as to the case of infancy (cited in support of the opposite view), that if of age, the infant, instead of spending, might accumulate the rents, and the Court did no more than exercise a discretion for the infant, which was a very different thing from creating a suspense fund to go to somebody who had no title during the accumulation.

To whom the excess shall belong.—The statute proceeds to declare, that “The produce of the property, so long as the same shall be directed to be accumulated contrary to the provisions of the Act, shall go and be received by *such person or persons as would have been entitled [*92] thereto if such accumulation had not been directed.”

14. Subsequent limitations not accelerated.—If there be a series of limitations of *real* estate, and one of them be upon trust to accumulate the rents beyond the limits allowed by the Act, the subsequent limitations are in general not accelerated; but the interim limitation, which is void under the Act, will result for the benefit of the heir-at-law (*a*); and if

(*h*) *Bryan v. Collins*, 16 Beav. 14; *Tench v. Cheese*, 19 Beav. 3.

(*i*) *Tench v. Cheese*, 6 De G. M. & G. 453.

(*a*) *Eyre v. Marsden*, 2 Keen, 564; *Nettleton v. Stephenson*, 3 De Gex & Sm. 366; *Edwards v. Tuck*, 3 De G. M. & G. 40; *Re Drakeley's Trust*, 19 Beav. 395; *Green v. Gascoigne*, 11 Jur. N. S. 145; S. C. 4 De G. Jon. & Sm. 565; *Smith v. Lomas*, 10 Jur. N. S. 743; *Talbot v. Jevvers*, 20 L. R. Eq. 255; and see *Griffiths v. Vere*, 9 Ves. 127. In *Trickey v. Trickey*, 3 M. & K. 560, the testator's daughter was held en-

titled to the excess of the accumulations, but *semble* not as tenant for life, but as the testator's heiress-at-law. In *Shaw v. Rhodes*, 1 M. & Cr. 135; S. C. by the title of *Evans v. Hellier*, 5 Cl. & Fin. 114, Thomas, the devisee subject to the accumulations, took the excess beyond the limits of the statute; but James Shaw was probably the testator's heir, and as James had died before the institution of the suit, Thomas, it is likely, thereupon became the heir of the testator, and took in that character. But see *Re Clulow's Trust*, 1 J. & H. 648.